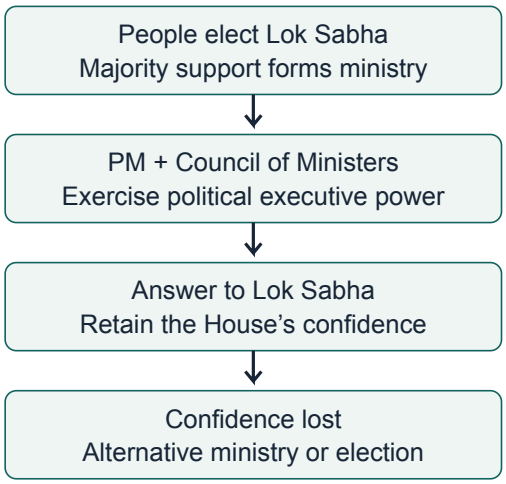
Parliamentary System

1. Central distinction

- **Parliamentary:** executive depends on the legislature's confidence; responsible/cabinet government or **Westminster model**. India: Union **74/75**, States **163/164**. Britain, Japan and Canada also use parliamentary government.
- **Presidential:** executive has a separately grounded, fixed tenure; it does not depend on legislative confidence. USA is the standard comparison.
- “Non-responsible” in this classification means **no parliamentary collective responsibility**, not absence of legal accountability, legislative oversight or impeachment.
- Avoid treating every country with a President as presidential: India's elected President coexists with parliamentary government. Russia and Sri Lanka have mixed/semi-presidential arrangements, so the chapter's broad examples need qualification.
- **Ivor Jennings:** cabinet is the nucleus of parliamentary power. **Primus inter pares:** Prime Minister as first among equals; Crossman/Mackintosh described growing PM dominance as **prime-ministerial government**. Actual dominance depends on party, coalition and institutions.

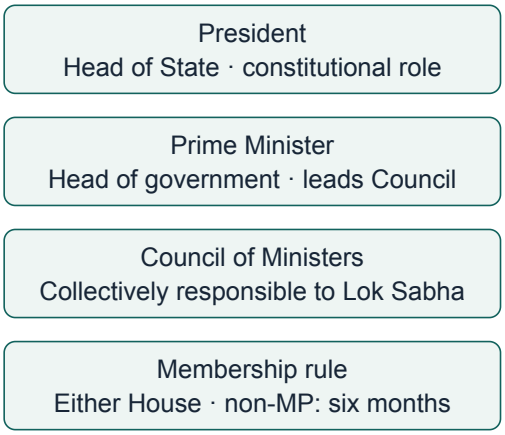


The parliamentary executive depends on lower-House confidence.

2. India's eight features

- **Dual executive:** President = head of State/constitutional executive; PM = head of government, leading the real political executive. Governor/Chief Minister parallels this at State level, with constitutionally specified differences.
- **Majority support:** normally majority party leader becomes PM; coalition or other confidence-supported ministry is possible. **Largest party alone is not an automatic entitlement** when someone else demonstrably commands majority support.
- **Collective responsibility:** 75(3) makes Council responsible to **Lok Sabha**, not Rajya Sabha. Ministers stand together; a successful no-confidence vote requires ministry's departure, subject to transition arrangements.

- **Political homogeneity:** common party programme; coalition ministers work through agreed policy/consensus. Homogeneity is a tendency, not a constitutional requirement that every minister share a party.
- **Executive–legislature overlap:** ministers usually MPs. A non-MP may be appointed but ceases after **six consecutive months** without membership: **75(5)**. “Double membership” means executive plus legislature, **not both parliamentary Houses**.
- **PM leadership:** coordinates ministers, government, parliamentary majority and governing party; PM may belong to **either House**. Indira Gandhi (1966), Deve Gowda (1996), Manmohan Singh (2004) illustrate Rajya Sabha membership.
- **Lower-House dissolution:** President can dissolve Lok Sabha under constitutional arrangements, ordinarily on ministerial advice. **Rajya Sabha is permanent**; advice/confidence issues in a hung House require constitutional judgment.
- **Secrecy:** minister takes office/secrecy oaths administered by President, **75(4), Third Schedule**. Cabinet confidentiality supports collective decisions; it does not erase legal disclosure/accountability duties.



Distinguish constitutional office, political leadership and House responsibility.

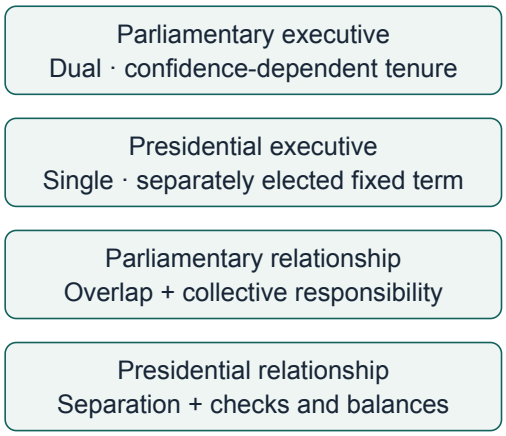
3. Advice, responsibility and membership: traps

- **74:** President acts on Council's advice; may require reconsideration **once**, then must act on reconsidered advice. 42nd Amendment made binding advice explicit; 44th added reconsideration.
- **Collective responsibility is to Lok Sabha**; ministers may still answer questions/scrutiny in both Houses. PM need not personally be a Lok Sabha member.
- A minister may speak/participate in either House under **88**, but **votes only in the House of membership**.
- The six-month exception permits initial external talent; the textbook claim that selection is absolutely restricted to existing MPs is too strong.
- Cabinet confidentiality and collective responsibility are different: one protects deliberation; the other requires public unity and lower-House confidence.

4. USA: presidential comparison

- President is **both head of State and head of government**; elected through Electoral College, **four-year term**. Congress is elected separately.

- Cabinet secretaries are appointed, not collectively dependent on Congress's confidence; many appointments require **Senate consent**. Cabinet and informal “kitchen cabinet” are distinct, not synonyms.
- President/secretaries cannot simultaneously sit in Congress. Officials can provide testimony and Congress exercises oversight; “cannot attend sessions” should not be read as a ban on appearing before Congress.
- President cannot dissolve Congress. Removal is not through a no-confidence motion: **House impeachment and Senate conviction**, on constitutional grounds of treason, bribery or other high crimes and misdemeanours.
- **Separation with checks/balances**, not watertight isolation: veto, legislative funding/oversight, Senate confirmation and judicial review.
- Stable tenure, policy continuity and appointment of specialists are possible advantages; legislative–executive deadlock, concentrated leadership and narrower representation are possible drawbacks.



Compare institutional design rather than assuming either system guarantees good governance.

5. Parliamentary merits: five

- **Coordination:** legislative/executive overlap helps implement the legislative programme and reduces institutional deadlock.
- **Responsibility:** questions, debates, committees, adjournment and no-confidence mechanisms scrutinise omissions as well as actions.
- **Checks on despotism:** collegiate decision-making and removable government; effectiveness depends on real parliamentary scrutiny.
- **Ready alternative:** another majority-supported leader can form government without fresh elections. Jennings described Opposition leader as an alternative PM; appointment still requires ability to command confidence.
- **Wide representation:** ministers can represent varied regions, communities and interests; plural executive facilitates accommodation.

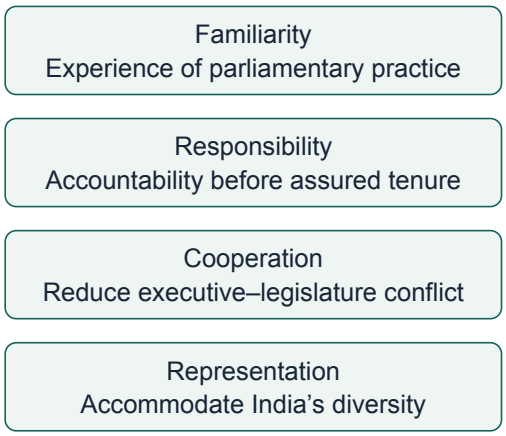
6. Parliamentary demerits: five

- **Instability:** loss of confidence, coalition breakdown or defections can end a ministry early. Historical examples: Morarji Desai, Charan Singh, V.P. Singh, Chandra Shekhar, Deve Gowda, I.K. Gujral.
- **Policy discontinuity:** changed ministries can reverse programmes; chapter contrasts Janata's 1977 changes and Congress's return in 1980. Continuity remains possible through institutions and consensus.

- **Cabinet/PM dominance:** large disciplined majority can weaken scrutiny. Laski warned about executive tyranny; Ramsay Muir discussed cabinet domination; chapter cites Indira/Rajiv Gandhi periods.
- **Fusion of powers:** executive leads legislation as well as administration. Bagehot's linkage idea captures this; India still preserves judicial independence and constitutional checks.
- **Expertise/time limits:** elected ministers may lack subject expertise and balance parliamentary, party and administrative work; specialist advice and non-MP appointment exception partly mitigate this.
- **Montesquieu, The Spirit of Laws (1748):** concentration of powers threatens liberty; separation is a safeguard, not a demand that Indian institutions never cooperate.

7. Why India adopted it: four reasons

- **Familiarity:** colonial-era representative/responsible institutions supplied experience. **K.M. Munshi** preferred established parliamentary traditions over an unfamiliar experiment.
- **Responsibility over assured tenure: Ambedkar** contrasted executive stability and responsibility; framers prioritised accountable government.
- **Avoid institutional conflict:** a new democracy undertaking development needed legislative–executive cooperation.
- **Diverse society:** collegiate executive could accommodate regions and interests, supporting participation and unity.
- **K.T. Shah** favoured a presidential model in Assembly debates. **Swaran Singh Committee (1975)** favoured retaining parliamentary government; debate over replacement intensified from the 1970s.



Four reasons the framers preferred parliamentary government.

8. India versus Britain: six distinctions

- **Head of State:** India elected republican President; Britain hereditary constitutional monarch.
- **Sovereignty:** India's Parliament is limited by written Constitution, federalism, rights and judicial review; Britain follows parliamentary sovereignty within its constitutional framework.
- **PM's House:** India either House; British PM sits in Commons by modern convention.
- **Ministers:** India express six-month non-member exception. Britain generally requires membership of Commons **or Lords by strong convention**, not an identical Indian six-month constitutional provision; outsiders can enter Parliament through appointment to Lords.

- **Legal responsibility/countersignature:** India's Constitution does not impose the British-style ministerial countersignature requirement for every official act of the head of State. Ministers in India remain subject to law—“no legal responsibility” does **not** mean personal immunity.
- **Shadow cabinet:** Britain institutionalised opposition portfolios; India has no comparable established national constitutional/conventional arrangement. The device is not unique to Britain worldwide.

---

9. One-minute recall / answer frame

- **Confidence, collective responsibility, dual executive, overlap, PM leadership, dissolution.**
- **Lok Sabha confidence; either-House PM; six-month non-MP exception; President reconsideration once.**
- Mains: accountability/coordination/representation → instability and majority dominance → India–Britain distinctions → strengthen committees, debates and opposition scrutiny within constitutional limits.

Official Constitution: 74–75, 88, 163–164

US Senate: Constitution and impeachment provisions

UK Parliament: ministerial membership convention

UK Parliament: shadow cabinet